

A status hearing re representation for Defendant Discovery Point Retreat Inc. shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY LATOYA HORN

Tentative Ruling: Pursuant to CCP §2031.010, a party may demand that any other party produce a document that is in the possession of another party for inspection. Likewise, any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) A party responding to an interrogatory or request for production must serve a response within 30 days after service of the request. (CCP §§ 2030.260(a); 2031.260(a).) If the responding party fails to serve a timely response, the party waives all objections, including those based on privilege. (CCP §§ 2030.290(a); 2031.300(a).) There is no time limit for such motions and no meet and confer requirement. (*Sinaiko Healthcare Consulting Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 411.)

On November 21, 2025, Plaintiff served the first set of written discovery on Defendant. (RFP Decl. of Van Hook, ¶ 4; Ex. 2.) Thus, the initial response deadline was December 23, 2026. (Id.) However, Plaintiff granted six extensions of the response deadline up to March 27, 2026. (Id. at ¶¶ 5-10; Ex. 4-8.) Defendant did not serve any responses prior to the extended deadline. (Id. at ¶ 11.) Accordingly, Defendant waived objections as of that date. On April 24, 2026, Defendant served responses containing only objections. (Id. at ¶ 17.)

Defendant argues that good cause for delay exists because its former counsel identified a potential conflict of interest in representing all Defendants in the action. Defendant's current counsel indicates that Plaintiff's counsel was first informed about the potential conflict on February 27, 2026 by former counsel. (Decl. of Eguiluz, ¶ 6; Ex. A.) The email states that former counsel was working through the potential conflict resulting from financial pressures in the business, which counsel hoped to have cleared by the following week. (Id.) Counsel requested additional time for the discovery. (Id.) Plaintiff granted an extension. (Decl. of Van Hook, Ex. 6.) However, Plaintiff's counsel asserts that the parties did not discuss or agree to an abeyance of the discovery deadline. (Id. at ¶ 11.)

On March 26, 2026, the parties filed a Stipulation and (Proposed) Order Continuing Mediation Completion Deadline and Trial Setting Conference. (Decl. of Eguiluz, Ex. B.) Defendant argues this Stipulation evidences an agreement to an abeyance of the discovery deadline. However, the Stipulation provides only for continuance of the OSC and TSC to dates after November 20, 2026. The Stipulation refers to discovery only as a basis for the cause for the continuances. (Id. ["Whereas, the discovery responses by Bella Monte Recovery II LLC have been delayed due to potential conflicts that have arisen among the Defendants, which may result in one or more of the Defendants retaining

separate defense counsel.”] There was no stipulation to continue any discovery deadlines. Accordingly, Defendant has not established that the discovery responses served on April 24, 2026 were timely. Because the responses were untimely, objections were waived.

Sanctions:

The court shall impose a monetary sanction against a party who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §§ 2031.300; 2031.300(c).) A responding party’s untimely discovery responses do not divest the trial court of the authority to hear a motion to compel. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 407.) The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though the requested discovery was provided to the moving party after the motion was filed. (Id at 409.)

While there was clearly a significant delay in responding to the discovery requests which appears to continue, it appears that Defendant’s failure to timely respond was substantially justified by a purported conflict of interest, which prevented former counsel from continuing representation. While the circumstances are somewhat vague, Defendant has established that sanctions are not warranted. The requests for sanctions should be denied.

Motion to Compel Responses to Requests for Production, Set One, GRANTED.

Defendant to provide verified code-compliant responses and documents, without objection, within 30 days.

Plaintiff’s Request for Sanctions DENIED.

Defendant’s Request for Sanctions DENIED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO COMPEL ANSWER/RESPONSE TO SPECIAL INTERROGATORIES RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) BY LATOYA HORN

Tentative Ruling:

Motion to Compel Responses to Special Interrogatories, Set One, GRANTED.

Defendant to provide verified code-compliant responses, without objection, within 30 days.

Plaintiff’s Request for Sanctions DENIED.